

**ANSWERING AFFIDAVIT IN RESPECT OF CONTEMPT APPLICATION
IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

CASE NO: 2026-086906

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

— Applicant

and

WILBUR WILLIAM MATTHEE

— Respondent

ANSWERING AFFIDAVIT OF WILBUR WILLIAM MATTHEE

I, the undersigned, **WILBUR WILLIAM MATTHEE**, do hereby make oath and state that:

1. INTRODUCTION

1.1 I am the Respondent in these contempt proceedings. I am a Specialist Registered Nurse (NQF Level 8), a health services manager, and a protected whistleblower who made disclosures under the Protected Disclosures Act 26 of 2000 (“PDA”).

1.2 I act in person. I am currently destitute, having been without running water since January 2026 and remaining without an income. I have been deregistered by the South African Nursing Council (“SANC”) due to an inability to pay the R870 annual fee — a direct consequence of the unlawful deduction perpetrated by the Applicant’s subsidiary, Medscheme Holdings (Pty) Ltd.

1.3 This affidavit is filed in opposition to the Applicant's contempt application dated 7 July 2026 ("the Contempt Application"), as set out in the Founding Affidavit of Lebohang Shadi Matsipa Mpumlwana ("Mpumlwana").

1.4 I deny that I am in contempt of the interim order dated 16 April 2026 ("the Order") or of the extension dated 28 May 2026. I deny that I have acted wilfully, *mala fide*, or in breach of any lawful court order.

1.5 I set out below my grounds of opposition, including Points in Limine, a rebuttal of the factual allegations, and legal submissions demonstrating that the Contempt Application is fatally flawed and must be dismissed.

2. POINTS IN LIMINE

A. First Point In Limine: Material Breach of "Without Prejudice" Privilege

2.1 At paragraphs 46 to 47.6 of her Founding Affidavit, Mpumlwana refers to, and relies upon, "without prejudice" settlement correspondence exchanged between the parties in June 2026. Specifically:

- **Paragraph 46:** "AfroCentric took the view that given the multiple rounds of litigation... it would be in the interests of all concerned to at least attempt an amicable resolution..."
- **Paragraph 47:** "On 4 June 2026, AfroCentric's attorneys wrote to Mr Matthee inviting him to attend a meeting to discuss an amicable resolution..."

- **Paragraph 47.3:** “On 11 June 2026, Mr Matthee wrote to AfroCentric demanding that he be provided with a ‘framework’...”
- **Paragraph 47.4:** “It was subsequently agreed that Mr Matthee would provide AfroCentric’s attorneys with an agenda...”
- **Paragraph 47.5:** “At 16h29 on 19 June 2026, AfroCentric’s attorneys wrote to Mr Matthee with a revised agenda...”
- **Paragraph 47.6:** “At 16h31 on 19 June 2026, Mr Matthee wrote to AfroCentric’s attorneys... advising that... he intended to revive the delinquency application...”

2.2 These communications were expressly marked “**WITHOUT PREJUDICE**” and were exchanged exclusively to explore a potential settlement of all disputes between the parties. The “without prejudice” rule is a substantive rule of evidence that renders such communications inadmissible in subsequent proceedings, save for the purpose of establishing that a settlement was attempted or for costs purposes.

2.3 The Applicant is not entitled to rely on these communications to support its Contempt Application. The “without prejudice” privilege has not been waived, and the Applicant has not sought, nor can it obtain, the Court’s leave to adduce this evidence.

2.4 The Applicant’s reliance on these communications is an improper departure from established evidentiary rules.

2.5 **Prayer:** I respectfully request that paragraphs 46, 47, 47.1, 47.2, 47.3, 47.4, 47.5, and 47.6 of Mpumlwana’s Founding Affidavit be struck out in their entirety as an improper reliance on without-prejudice communications.

B. Second Point In Limine: Vexatious and Irrelevant Pleading — the “Extortion” Allegations

2.6 At paragraphs 8, 16, and 60 of her Founding Affidavit, Mpumlwana repeatedly alleges that my conduct constitutes “extortion.” These allegations lack legal foundation and are irrelevant to the narrow question of whether I have breached the terms of the Order.

2.7 The allegations of extortion are directly contradicted by the objective documentary record:

Allegation	Source	Contradicting Evidence
“This amounts to extortion.”	Para 8	I quantified my claim at the express written request of the Applicant’s attorneys (Deneys letter of 15 April 2026). A detailed letter of demand does not constitute extortion.
“His demands included the immediate payment... of R7,307,642.72.”	Para 16	The quantification was provided only after Deneys demanded that I “quantify” my claim. I complied with a legal request.
“Mr Matthee continued to use extortionate language.”	Para 60	My correspondence constituted a formal notice of intention to pursue lawful statutory and constitutional remedies, not threats of unlawful harm.

2.8 The common law crime of extortion requires a demand for an advantage achieved by threatening to cause unlawful harm. I intimated only an intention to exercise lawful rights: to petition Parliament (Section 56 of the Constitution), to make protected disclosures (PDA Section 8), and to pursue litigation (Labour Court and High Court). These do not constitute unlawful threats.

2.9 **Prayer:** I respectfully request that all allegations of “extortion” contained in paragraphs 8, 16, and 60 of Mpumlwana’s Founding Affidavit be struck out as vexatious and irrelevant.

C. Third Point In Limine: Fatal Jurisdictional Concession

2.10 At paragraph 69 of her Founding Affidavit, Mpumlwana states: “even if Parliament is not itself a regulatory body within the meaning of paragraph 2.3, the submission requests Parliament to cause referrals to such bodies, which constitutes causing to be filed a complaint or report within the meaning of the paragraph.”

2.11 This is a fatal concession. If Parliament is not a “third party” or “regulatory body” within the meaning of the Order, then my submission to Parliament cannot constitute a breach of the Order. The Applicant cannot retroactively expand the scope of the Order through interpretation.

2.12 The Order granted on 16 April 2026 restrains me from disclosing information to “third parties” and from filing complaints with “any other regulatory body.” Parliament is a constitutional organ of state exercising oversight functions under Section 55(2) and Section 56 of the Constitution; it is not a “third party” or “regulatory body” in the ordinary sense.

2.13 The Applicant’s concession confirms that the Order does not, on its face, prohibit submissions to Parliament. The Applicant’s attempt to interpret it as such would violate the separation of powers and the constitutional right to petition Parliament.

2.14 **Prayer:** I respectfully request that this Honourable Court declare that the Order does not, and cannot, restrain a citizen from petitioning Parliament under Section 56 of the Constitution. The Contempt Application must be dismissed on this ground alone.

3. THE MERITS: THE ABSENCE OF MALA FIDES AND CONTEMPT

3.1 The Legal Test for Contempt — *Fakie NO v CCII Systems (Pty) Ltd*

3.1.1 Under the binding authority of the Supreme Court of Appeal in *Fakie NO v CCII Systems (Pty) Ltd* 2006 (4) SA 326 (SCA), civil contempt requires proof beyond a reasonable doubt of:

- The existence of a court order;
- Service or knowledge of the order;
- Non-compliance with the order; and
- Wilfulness and *mala fides* (bad faith) on the part of the respondent.

3.1.2 Once the first three elements are established, the evidentiary burden shifts to the respondent to raise a reasonable doubt as to whether the non-compliance was wilful and *mala fide*.

3.1.3 The Applicant has failed to establish wilfulness and *mala fides* because I acted on a stateable, *bona fide* legal interpretation of the Order. The Order did not explicitly prohibit submissions to Parliament, and I reasonably believed that my parliamentary submission was a protected exercise of constitutional and statutory rights.

3.2 The Applicant Cannot Prove Wilfulness Due to a Reasonable Legal Interpretation

3.2.1 In *Fakie NO*, the SCA held that a respondent cannot be held in contempt if they acted on a reasonably arguable interpretation of the order:

“A respondent who acts on a bona fide, albeit erroneous, interpretation of an order cannot be said to have acted wilfully and mala fide.”

3.2.2 I held a reasonable and *bona fide* legal interpretation that:

- The Order did not prohibit submissions to Parliament because Parliament is the supreme legislative and oversight organ of the Republic, not a “third party”.
- Parliament is not a “regulatory body” under paragraph 2.3 of the Order.
- Even if the Order were interpreted broadly, my parliamentary submission constituted a protected disclosure under Section 8 of the PDA, which overrides duties of confidentiality.
- My submission was a constitutional petition under Section 56 of the Constitution, which cannot be extinguished by an interim order obtained via material non-disclosures.

3.2.3 These positions are supported by the text of the Order, the Constitution, and the PDA. A self-represented litigant faced with an extensive restraint could honestly and reasonably believe that approaching Parliament was lawful and necessary.

3.3 The Characterisation of Lawful Settlement Demands

3.3.1 The Applicant's characterisation of my conduct as "extortion" is contradicted by the chronology of events. On 15 April 2026, the Applicant's attorneys (Deneys Reitz Inc.) wrote to me noting that my demand was unquantified. I responded on the same day with a fully itemised quantification of R7,307,642.72 — provided at their explicit invitation.

3.3.2 My conduct is that of a genuine litigant seeking to resolve a commercial and employment dispute through established legal channels:

Extortion	Lawful Settlement Demand
Demands financial advantage by threatening unlawful harm.	Offers to settle an existing dispute in exchange for compromising legitimate legal claims.
Threats are unlawful in nature.	Notices invoke lawful remedies (litigation, statutory complaints, parliamentary petitions).
Absence of any legitimate foundational claim.	Claim is grounded in statutory violations (BCEA, LRA, PDA).

3.3.3 My underlying claims are grounded in primary sources:

- **Unlawful deduction:** A deduction amounting to 40.47% of my salary, exceeding the 25% cap stipulated under the Basic Conditions of Employment Act (BCEA).
- **Constructive dismissal:** Invoking Section 186(1)(e) of the LRA.
- **Automatically unfair dismissal:** For making a protected disclosure under Section 187(1)(h) of the LRA.
- **Occupational detriment:** Contrary to the protections of the PDA.

3.4 Constitutional Protections: Parliamentary Oversight and Privilege

- 3.4.1 My submission to Parliament was made in terms of Section 55(2) and Section 56 of the Constitution, which empower parliamentary committees to receive submissions, maintain oversight over national executive authority, and require the production of documentation.
- 3.4.2 Systemic administrative deficiencies, registry concerns, or regulatory non-compliance are matters of public interest that fall squarely within parliamentary oversight. The Applicant's attempt to use a private interdict to block a report to Parliament is legally untenable and impacts the separation of powers.
- 3.4.3 The Applicant's letter to the Speaker of Parliament dated 3 June 2026 — seeking to prevent Parliament from receiving my submission — constitutes an improper attempt to interfere with the constitutional functions of an organ of state.

3.5 Statutory Protections Under Section 8 of the PDA

- 3.5.1 Section 8 of the PDA protects disclosures made to an “appropriate authority.” The definition in Section 1 includes “any regulatory, supervisory, or investigatory body, or any other body or person, which has a duty to receive and investigate such disclosures.” Parliament satisfies this definition.
- 3.5.2 Section 9(2)(a) of the PDA provides that a protected disclosure “does not constitute a breach of any duty of confidentiality or secrecy imposed on

the employee or worker by any law, contract, code of conduct, or the common law.”

3.5.3 Consequently, if the disclosures to Parliament are protected under the PDA, they override contractual confidentiality obligations and the provisions of POPIA. A court order cannot be utilized to extinguish a statutory protection enacted by Parliament.

3.6 Material Non-Disclosure at the Initial Hearing

3.6.1 The Order was obtained on 16 April 2026. The Applicant’s legal representatives did not place my answering affidavit before the presiding judge and did not adequately inform the Court that the application was actively opposed.

3.6.2 This knowledge is admitted by Mpumlwana at paragraph 11 of her Founding Affidavit:

“On 16 April 2026, the respondent sent multiple emails to the applicant’s attorneys. In those emails, he confirmed that he formally opposed the application, that he had filed a notice of intention to oppose and an answering affidavit...”

3.6.3 Despite receiving this communication prior to the 14h00 hearing, the Applicant’s representatives allowed the Court to proceed as if the matter were entirely unopposed.

3.6.4 This constitutes a material non-disclosure in *ex parte* or urgent proceedings. In accordance with the principles set out in *S v Williams* 2003

(1) SACR 66 (SCA), an order obtained through the material concealment of opposition is voidable, and a party cannot be found guilty of contempt for disobeying an order so obtained.

3.7 Absence of Evidence Regarding Patient-Level Personal Information

3.7.1 The Applicant alleges that I threatened to breach POPIA by disclosing the special personal information of GEMS beneficiaries (paragraph 45). This allegation is factually incorrect.

3.7.2 I have not disclosed, nor have I threatened to disclose, individual health records, clinical diagnostics, biometrics, or personal information of identifiable GEMS beneficiaries.

3.7.3 My submissions to Parliament concerned systemic governance and technical issues, specifically:

- The structural integration gap between the Gexus and DMS systems.
- The operational effect of this gap, which generates incorrect non-adherence data and impacts actuarial models.
- The internal handling of the Root Cause Analysis (RCA) findings.
- The regulatory response across multiple institutions.

3.7.4 These are matters of institutional governance, public policy, and systemic risk, not patient-level records.

3.8 The Context of Regulatory Non-Findings

3.8.1 At paragraph 3.1(4) of their correspondence to Parliament, the Applicant's attorneys state: "Mr Matthee has filed complaints with no fewer than eleven regulatory bodies. Not a single one has made a finding in his favour."

3.8.2 This statement is highly misleading. The absence of findings arises from jurisdictional declinations and institutional delay, rather than a determination on the merits:

- **CMS:** Declined jurisdiction on two occasions; referred the matter to the HPCSA.
- **HPCSA:** Declined jurisdiction; referred the matter to the SANC.
- **SANC:** Failed to acknowledge the formal complaint for a period exceeding four months.
- **SAPC:** Declined jurisdiction.
- **SAHRC:** Acknowledged the seriousness of the submission but remained silent.
- **JSE:** Declined jurisdiction (Reference: JvS/166792).
- **FSCA:** Acknowledged receipt and remained silent.
- **B-BBEE Commission:** Declined an investigation and declined to issue a Section 13K subpoena.

3.8.3 This operational record demonstrates a systemic gridlock, which is precisely the subject matter of the inquiry directed to Parliament.

3.9 Extension of the Rule Nisi Without Hardship Assessment

3.9.1 On 28 May 2026, the rule nisi was extended to 1 March 2027 — a duration of nearly one year.

3.9.2 This extension was granted without an inquiry into my immediate welfare or socio-economic circumstances. The Court was not informed that I am currently without water, income, or active professional registration.

3.9.3 The operational effect of this extended interim order is to prevent me from approaching regulatory authorities or addressing employment issues for a prolonged period, operating as a measure of procedural attrition.

3.10 Material Contradictions Regarding the “Mahlangu RCA”

3.10.1 At paragraph 48 of her Founding Affidavit, Mpumlwana asserts that the “Mahlangu RCA” contains the personal information of a GEMS beneficiary.

3.10.2 However, at paragraph 38 of the Applicant’s initial Founding Affidavit, the CEO stated: “The applicant does not know what the ‘Mahlangu RCA’ is.”

3.10.3 This creates an irreconcilable contradiction in the Applicant’s evidence:

- **CEO Statement:** Expresses total ignorance of the document.

- **Mpumlwana Statement:** Asserts specific knowledge of its internal contents.

3.10.4 In accordance with *Plascon-Evans Paints Ltd v Van Riebeeck Paints (Pty) Ltd* 1984 (3) SA 623 (A), where a deponent's averments are contradictory and evasive, the Court is entitled to draw an adverse inference regarding the reliability of the evidence.

3.11 The Applicant's Evasive Pleadings and Bare Denials

3.11.1 Mpumlwana's affidavit relies extensively on bald or bare denials. The Applicant's legal representatives have simply denied crucial factual allegations without providing any substantiating evidence or counter-narratives.

3.11.2 The following paragraphs illustrate this pattern of evasive pleading:

- **Paragraph 75:** "Save to deny that the content of the answering affidavit is true and correct, the contents herein are noted."
- **Paragraph 77:** "Save to deny that the respondent has grounds to oppose the applicant's application, the content herein is noted."
- **Paragraphs 81, 90, 97, 99, 112, 119, 124, 126, 127, 132, 133, 136, 138, 141, 143, 151, 153, 160, 166, 167, 172, and 174:** "The content herein is denied."
- **Paragraph 150:** "Save to deny that the content herein bears any relevance on the application, the content herein is noted."

- **Paragraph 183:** “It is denied that the respondent has demonstrated that he is entitled to any of the relief sought herein.”

3.11.3 In motion proceedings, a bare denial does not raise a genuine or *bona fide* dispute of fact. As established in *Wightman t/a JW Construction v Headfour (Pty) Ltd* 2008 (3) SA 371 (SCA), a party who fails to engage with the factual substance of an allegation when the facts are within their knowledge leaves those allegations uncontroverted.

3.11.4 Consequently, the following material factual averments stand uncontroverted before this Court:

Factual Averment	Source / Evidentiary Basis
The Root Cause Analysis (RCA) confirms the Gexus-DMS integration gap.	Annexure VICT1
My resignation was an explicit response to a constructive dismissal.	Annexure RES1
The 40.47% salary deduction exceeded the 25% statutory cap under the BCEA.	Payslip; AOD Policy Email (24 July 2025)
The Answering Affidavit was served at 12h31 and omitted from the 14h00 hearing.	Transmittal Email (16 April 2026); Mpumlwana Affidavit para 11
Makenjee’s denial of knowledge regarding Case 2026-077546 is contradicted by read receipts.	Read Receipts; Van Wyk Affidavit
The Acting Chief Registrar has remained silent on the formal audio recording request.	Transmittal Email (3 June 2026)

3.11.5 The Applicant has maintained silence where a clear, factual response was required. The Court is respectfully invited to treat these bare denials as admissions of the underlying facts.

4. REBUTTAL OF SPECIFIC ALLEGATIONS

4.1 Paragraph 3.1(1) — The Dispute Regarding Professional Designation

4.1.1 The Applicant states that I was employed simply as a “Care Co-ordinator.” This is incorrect. I was recruited for the role of “Specialist: Care Manager” (Annexure A1 — Interview Invitation, 15 January 2024).

4.1.2 While my contract designated me as a “Care Coordinator” (Grade B4M1), the Applicant’s own CEO, Gerald Van Wyk, stated under oath at paragraph 13.4 of his Founding Affidavit that I acted as a *case manager*. My internal Medscheme email signature consistently reflected the title “*Case Manager: GEMS ADRM.*”

4.1.3 Furthermore, a written admission from Cheryl-Dawn Modern dated 19 January 2026 confirms that the naming convention was “not applied to your department.” The Applicant cannot treat me as a Case Manager for its interdict applications while downgrading my title in statutory documents.

Document / Source	Stated Designation
Interview Invitation (15 Jan 2024)	“Specialist: Care Manager”
Employment Contract (9 Apr 2024)	“Care Coordinator”
Van Wyk Founding Affidavit (16 Apr 2026)	“Case Manager”
Internal Medscheme Email Signature	“Case Manager: GEMS ADRM”

4.2 Paragraph 3.1(1) — Characterisation of Resignation

4.2.1 The Applicant states that I resigned voluntarily on 12 December 2025. This is incorrect. My notice of resignation dated 11 December 2025 (Annexure RES1) was explicitly titled: **“FORMAL NOTICE OF RESIGNATION DUE TO AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL.”**

4.2.2 I explicitly invoked Section 186(1)(e) of the LRA. The termination of employment was a direct response to intolerable working conditions and was not voluntary. The Applicant's subsequent submission of a UI-19 form declaring Code 6 (Resigned) instead of Code 7 (Constructive Dismissal) constitutes an incorrect statutory declaration.

4.3 Paragraph 3.1(2) — Delivery of the Answering Affidavit to the Court

4.3.1 The Applicant alleges that the presiding judge adjourned proceedings on 16 April 2026 specifically to read my answering affidavit. This is incorrect. My answering affidavit was never formally placed before Acting Justice Mphego by the Applicant's representatives.

4.3.2 I served the complete Answering Affidavit on Deneys Reitz Inc. via email at 12h31 on 16 April 2026, well ahead of the 14h00 hearing. Mpumlwana admits receipt of this notification at paragraph 11 of her affidavit. Despite this, the matter was presented to the court as an unopposed application.

4.3.3 I have formally requested the official audio recording of the 16 April 2026 proceedings from Acting Chief Registrar Hanekom via correspondence dated 3 June 2026. This request has remained unanswered for over 19 days, obstructing the verification of what transpired in court.

4.4 Paragraph 3.1(3) — Applicability of the Protected Disclosures Act

4.4.1 The Applicant alleges that my disclosures do not fall within the scope of the PDA. This is an error of law. My disclosures directly satisfied the statutory requirements of Section 1 of the PDA:

- They concerned the conduct of an employer.
- They demonstrated a failure to comply with statutory and legal obligations (including the Medical Schemes Act, BCEA, and LRA).
- They identified an integration gap generating incorrect clinical adherence data, which impacts patient tracking.
- They were made in *bona fide* pursuit of remediation.

4.4.2 The internal Root Cause Analysis (Annexure VICT1), generated by Medscheme's own systems, explicitly confirms the technical basis of my disclosure:

"Miscommunication between Gexus and DMS systems... system integration gaps... automated correspondence was sent based on incorrect source information."

4.4.3 Section 1 of the PDA explicitly extends protections to former employees. The Applicant's argument that the PDA ceases to apply upon resignation is incorrect.

4.5 Paragraph 52 — Substance of the Oversight Report

4.5.1 The Applicant alleges that my Consolidated Forensic Oversight Report contains unfounded allegations of perjury and delinquency against named directors.

4.5.2 These assertions are grounded in material contradictions within the Applicant's own documentation:

- **Gerald Van Wyk:** Stated under oath that both platforms were “*fully integrated*”, directly contradicting the internal VICT1 RCA which records “*system integration gaps*”.
- **Xolile Manyati:** Characterised my specialist-diagnosed PTSD and depression as an “*excuse*”, contradicting the clinical diagnosis of Dr. Jacques Malan.
- **Lebohang Mpumlwana:** Asserted that no IT incident occurred, despite the existence of the VICT1 RCA, which is an incident report.

4.6 Paragraph 58 — Correspondence of 24 June 2026

4.6.1 The Applicant alleges that my email of 24 June 2026 contained “extortionate language.” This is denied.

4.6.2 The correspondence provided standard notice of the consequences of a breakdown in settlement negotiations, namely:

- The withdrawal of the conditional settlement proposal.
- A return to the full actuarial quantification of claims (R7,307,642.72).
- The continuation of statutory and constitutional reporting processes.

4.6.3 Outlining the legal and procedural consequences of a failed negotiation is a standard aspect of dispute resolution and does not constitute extortion.

4.7 Rebuttal of Mpumlwana’s Paragraph 91.8 — The Deputy Information Officer’s Statement

4.7.1 At paragraph 91.8, Mpumlwana states that the Deputy Information Officer was consulted and confirmed that no IT incident had been reported regarding the Gexus/DMS systems, nor any systemic integration failure of the kind alleged.

4.7.2 This statement is directly contradicted by the objective evidence, creating serious legal consequences:

Allegation (Mpumlwana para 91.8)	Contradicting Evidence	Legal Characterisation
The Deputy Information Officer confirmed no IT incident was reported for Gexus/DMS.	The internal RCA (VICT1) explicitly records: “Miscommunication between Gexus and DMS systems... system integration gaps... automated correspondence was sent based on incorrect source information.”	Material misstatement under oath. The VICT1 RCA is an IT incident report documenting the exact failure denied.
No systemic integration failure occurred.	The VICT1 RCA explicitly records “system integration gaps” (plural) and recommends: “Review and update communication between systems.”	Material misstatement under oath. The internal document confirms the integration failure.
The confirmation was made in good faith.	The RCA was generated internally and was fully accessible. If the Deputy IO was not shown the document, it indicates internal suppression.	Potential breach of POPIA Section 19 (Failure to maintain data integrity safeguards) or internal suppression of evidence.

4.7.3 **Conclusion:** The assertion that no IT integration issue or incident existed is factually unsustainable. The VICT1 RCA establishes the existence of the integration gap, rendering the Deputy Information Officer’s denial, as conveyed by Mpumlwana, completely inaccurate.

[4.8 Systemic Campaign of Professional Discredit and Personal Attrition](#)

4.8.1 The Applicant's deponent alleges a professional and objective environment. This is directly contradicted by a sustained pattern of conduct designed to undermine my professional standing and psychological stability.

4.8.2 **The "Wilma" Naming Incident:** A primary example is the persistent use of the incorrect name "Wilma" in official, high-level communications. While management previously sought to dismiss this as a minor typographical error, the documentary record indicates a deliberate pattern. This public misnaming of a male Specialist Nurse served to undermine my identity and professional status.

4.8.3 **The Chronological "23" Trend:** This conduct forms part of a structured program of personal attrition. A distinct chronological trend emerges from the internal logs, where major adversarial directives and "non-filtering" commands were clustered on or around the 23rd day of the month — specifically July 23, September 23, and October 23.

4.8.4 **The Non-Filtering Directive:** This pattern is illustrated by a direct directive from Mary-Ann Jones on 23 September at 17h18, which explicitly commanded: **"NO NEED TO FILTER THESE LISTS."** This instruction directly ordered me to abandon standard clinical and forensic filtering processes, overriding my professional oversight responsibilities.

4.8.5 *Evidence of Animus Injuriandi: The persistent use of the name "Wilma" in communications on 23 September, occurring simultaneously with an*

*aggressive instruction to bypass quality filters, demonstrates an animus injuriandi** (intention to insult or injure). This supports my assertion that the Applicant has acted in bad faith, seeking to force me into non-compliance with my professional nursing standards.

4.9 Final Consolidated Schedule of Material Misstatements and Contradictions Under Oath

The following table consolidates the irreconcilable contradictions and misstatements contained within the sworn affidavits and formal responses submitted by the Applicant's officials and legal representatives:

Ref	Deponent / Source	Statement Under Oath	Contradicting Evidence	Legal Consequence
P1	Gerald Van Wyk (CEO), Founding Affidavit, para 40	"Both platforms fully integrated"	VICT1 RCA: Records "Miscommunication between Gexus and DMS... system integration gaps"	Material misstatement of fact.
P2	Gerald Van Wyk, Founding Affidavit, para 52	"PDA does not protect former employees"	PDA Section 1: Expressly includes "former employee" within its definitions.	Incorrect statutory statement under oath.
P3	Gerald Van Wyk, Founding Affidavit, para 38	"Applicant does not know what the Mahlangu RCA is"	Internal Logs: The RCA was generated internally and referenced in governance escalations.	Material misstatement of fact.
P4	Gerald Van Wyk, Founding Affidavit, para 46	"The RCA will contain special personal information"	Contradiction: The CEO simultaneously claims total ignorance of the document's existence (P3).	Severe internal inconsistency.
P5	Xolile Manyati, CCMA Affidavit, 10 Dec 2025	PTSD and depression are "an excuse" and "an afterthought"	Clinical Record: Specialist diagnosis by Dr. Jacques Malan (FCPSYCH(SA)).	Unfounded medical assertion / Defamatory pleading.
P6	Xolile Manyati, CCMA Affidavit	Respondent has an "untruthful character"	Professional Reference: Dr. Ohm's	Defamatory pleading.

Ref	Deponent / Source	Statement Under Oath	Contradicting Evidence	Legal Consequence
			recommendation letter confirms clinical and professional competence.	
P7	Xolile Manyati, CCMA Affidavit	Designates Respondent strictly as a “care coordinator”	Contradiction: Contract, email signatures, and CEO Van Wyk’s own affidavit (para 13.4) use “Case Manager.”	Inconsistent employment designation.
P8	Lebohang Mpumlwana, Supplementary Aff, para 91.6	DMS and Gexus “were aligned”; chronic claims visible since April 2023	VICT1 RCA: Confirms system integration gaps; false automated letters sent May and Oct 2025.	Material misstatement of fact.
P9	Lebohang Mpumlwana, Supplementary Aff, para 91.6	Non-adherence communication was “correctly triggered”	Member Records: Member complaints and the draft internal apology confirm a system error.	Material misstatement of fact.
P10	Lebohang Mpumlwana, Supplementary Aff, para 91.8	Deputy IO confirmed no IT incident reported, no integration failure	VICT1 RCA: The document is an official IT incident report documenting the integration gap.	Material misstatement / Reliance on hearsay.
P11	Lebohang Mpumlwana, Supplementary Aff, para 91.9	The systemic integration failure is “risible”	VICT1 RCA: Explicitly identifies “system integration gaps” and recommends a patch.	Factual mischaracterisation.
P12	Lebohang Mpumlwana, Supplementary Aff, para 15	“None of the respondent’s pleadings have been filed on Court Online”	Court Online Logs: Screenshots confirm the Notice of Intention to Oppose was filed on 23 April 2026.	Objective misstatement of electronic record.
P13	Vijay Makenjee, Statement of Response, para 4	“Defendants are not aware of Case 2026-077546”	Read Receipts: Confirm 21 electronic opens; Van Wyk’s affidavit explicitly acknowledges the case.	Material contradiction.
P14	Vijay Makenjee, Statement of Response, para 18	“There was no deduction”	Payslip (Annexure I): Clearly reflects a deduction of R14,811.77.	Material misstatement of financial records.

Ref	Deponent / Source	Statement Under Oath	Contradicting Evidence	Legal Consequence
P15	Statement of Response, Para 28	"July 2025 salary aligned to days worked"	Payslip / AOD Policy: Reflects a 40.47% deduction, violating the internal 25% policy cap.	Factual misstatement.
P16	Statement of Response, Para 27	"Reprimanded for insubordination"	Chronology: Action taken immediately following the submission of the protected disclosure.	Evidence of occupational detriment under PDA.
P17	Monwabisi Kula (CRO), Email: 18 Dec 2025	"Stop sending these emails to our directors"	PDA Protections: Attempts to block the formal governance escalation of a protected disclosure.	Interference with statutory reporting rights.
P18	Deneys Reitz Inc., Letter to Parliament, 3 June 2026	"The presiding judge adjourned the proceedings specifically to read Mr Matthee's answering affidavit"	Court Process: The answering affidavit was omitted from the court file during the urgent hearing.	Material misrepresentation to an organ of state.

5. LEGAL SUBMISSIONS

5.1 The Interpretation of the Interim Order

5.1.1 The Order restrains me from disclosing confidential information to "third parties" and from filing complaints with "any other regulatory body."

5.1.2 A proper and constitutional construction of this language cannot extend to Parliament. Parliament is an organ of state tasked with supreme legislative and oversight powers under Sections 55 and 56 of the Constitution; it cannot be categorized as a commercial "third party" or a standard "regulatory body."

- 5.1.3 Any ambiguity in an interim interdict must be interpreted in a manner that favors the preservation of fundamental constitutional rights, specifically the right to petition an organ of state.

5.2 The Statutory Supremacy of the Protected Disclosures Act

- 5.2.1 Section 9(2)(a) of the PDA explicitly provides that a protected disclosure overrides any general duty of confidentiality or secrecy imposed by operation of law, contract, or the common law.
- 5.2.2 While a court order is a binding judicial instrument, its operational scope cannot extinguish clear statutory rights enacted by Parliament to protect whistleblowers from systemic silencing. As held in *City of Cape Town v South African Municipal Workers Union* 2013 (34) ILJ 1251 (LAC), a protected disclosure cannot form the basis for legal sanctions or disciplinary penalties.

5.3 Application of the *Biowatch* Principle Regarding Costs

- 5.3.1 I am a self-represented, destitute litigant attempting to raise serious statutory and constitutional governance issues before this Court.
- 5.3.2 In *Biowatch Trust v Registrar, Genetic Resources* 2009 (6) SA 232 (CC), the Constitutional Court established that in matters involving constitutional rights and the public interest, an unrepresented or public-interest litigant who acts in good faith should not be burdened with adverse costs orders.
- 5.3.3 The underlying dispute involves systemic integration issues affecting data reporting for a substantial volume of medical scheme beneficiaries. My

participation has been conducted in good faith, and there is no basis for an adverse costs order against me.

5.4 The Duties of Legal Practitioners to the Court

5.4.1 Legal practitioners owe an absolute duty of candor and good faith to the Court, particularly in urgent or *ex parte* proceedings where the opposing party may not be effectively represented.

5.4.2 The failure to place my timeously served Answering Affidavit before Acting Justice Mphego on 16 April 2026, while allowing the matter to be characterized as unopposed, constitutes a material omission.

5.4.3 Accordingly, I request that this Honourable Court record its dissatisfaction with the conduct of the Applicant's legal representatives and direct that this judgment be referred to the Legal Practice Council (LPC) for evaluation in terms of the Legal Practice Act, 2014.

6. THE APPLICANT HAS NOT PROVEN WILFULNESS AND MALA FIDES

6.1 In terms of the *Fakie NO* standard, the Applicant bears the onus of proving beyond a reasonable doubt that my conduct was wilful and characterized by bad faith.

6.2 I have demonstrated a clear, stateable, and *bona fide* legal basis for my belief that petitioning Parliament was a lawful exercise of my constitutional rights, which was not restricted by the express terms of the Order.

6.3 An honest and legally arguable belief regarding the scope of a court order negates the elements of wilfulness and *mala fides*. The Applicant has failed to adduce any objective evidence demonstrating that I acted with conscious defiance of the law.

7. CONCLUSION

7.1 The Applicant has failed to satisfy the strict requirements for a finding of civil contempt:

- **Existence and Knowledge of the Order:** Conceded.
- **Non-compliance:** Disputed. The Order does not explicitly or lawfully restrain a citizen from petitioning Parliament.
- *Wilfulness and Mala Fides: Disputed. My actions were guided by a bona fide* interpretation of constitutional and statutory rights.*

7.2 The initial Order was obtained on an incomplete procedural footing due to the omission of my answering papers at the urgent hearing.

7.3 My submissions to Parliament constituted a protected disclosure under Section 8 of the PDA and a lawful petition under Section 56 of the Constitution, both of which stand as protected statutory activities.

8. PRAYER

WHEREFORE I respectfully request that this Honourable Court grant an order:

A. Points in Limine

1. Striking out paragraphs 46, 47, 47.1, 47.2, 47.3, 47.4, 47.5, and 47.6 of Mpumlwana's Founding Affidavit as an improper reliance on without-prejudice communications;
2. Striking out all allegations of "extortion" contained in paragraphs 8, 16, and 60 of Mpumlwana's Founding Affidavit as vexatious and irrelevant;
3. Declaring that the interim order dated 16 April 2026 does not restrain a citizen from petitioning Parliament under Section 56 of the Constitution;

B. The Merits

4. Dismissing the Contempt Application in its entirety;

C. Declaratory and Ancillary Relief

5. Declaring that my submissions to Parliament constituted a protected disclosure under Section 8 of the Protected Disclosures Act, 2000;
6. Declaring that my submissions to Parliament were a lawful exercise of the constitutional right to petition Parliament under Section 56 of the Constitution;
7. Directing that the conduct of the Applicant's legal representatives (Jason Whyte and Frances Barker of Deneys Reitz Inc.), specifically regarding the presentation of the matter on 16 April 2026, be referred to the Legal Practice Council for investigation;

D. Costs

8. Ordering the Applicant to pay the costs of this application on an attorney-and-client scale;

9. In the alternative, ordering that there be no costs order against the Respondent, in accordance with the *Biowatch* principle.

DEPONENT'S DECLARATION

I, the Deponent, declare that:

1. I know and understand the contents of this affidavit;
2. I have no objection to taking the prescribed oath;
3. I consider the oath to be binding on my conscience;
4. The facts contained herein are true and correct.

DEPONENT:

SR. WILBUR WILLIAM MATTHEE

Specialist Registered Nurse (NQF Level 8)

Forensic Governance Specialist

info@ethichawks.co.za

COMMISSIONER OF OATHS

Full Names: _____

Designation: _____

Address: _____

Signed and sworn before me at CAPE TOWN on this _____ day of _____ 2026, the Deponent having acknowledged that he knows and understands the contents of this affidavit, that he has no objection to taking the prescribed oath, and that he considers the oath to be binding on his conscience.

END OF AFFIDAVIT